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**RELEASE OF
AMENDMENT TO THE RESTRICTIONS
OF
COLUMBIA LAKES SUBDIVISION**

THE STATE OF TEXAS }
 }
COUNTY OF BRAZORIA } **KNOW ALL MEN BY THESE PRESENTS:**

WHEREAS, Columbia Lakes Subdivision (hereinafter the "Subdivision") is a primarily residential subdivision which is located on a certain tract of land in the in Brazoria County, Texas, said Subdivision being described with particularity on those certain five (5) plats which depict:

(i) the five (5) sections of residential lots in the Subdivision, as well as
(ii) an assortment of reserve tracts also located within the Subdivision,
all of which are described with particularity on those certain five (5) plats depicting the five (5) sections of the Subdivision, all of which are recorded in the Brazoria County Plat Records; and

WHEREAS, certain restrictive covenants (hereinafter the "Restrictions") are applicable to the use, and prospective uses, of the real properties located within Sections 1, 2, 3 and 4 of the Subdivision, same also being of record; and

WHEREAS, Article VIII of the document setting forth the original set of restrictive covenants for the Subdivision (which are of record at Volume 1128, page 911 of the Brazoria County Deed Records and hereinafter referred to as the "Original Restrictions") permits the transfer of the authorities and duties of the "Developer" of the Subdivision, as that term is defined and described in the Restrictions, to one or more corporations, nonprofit or otherwise, to be organized for the purpose of exercising the duties and prerogatives of the Developer under the Restrictions; and

WHEREAS, by a series of assignments which are of record, the authority and duties of the Developer of the Subdivision under the Restrictions, have been

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Ang TX 77515

assigned to certain third-parties, specifically including, but not limited to the Columbia Lakes Homeowners Association, (hereinafter referred to as the "CLHOA"), a Texas non-profit corporation whose membership is comprised of the owners of residential lots located within the Subdivision; and

WHEREAS, by virtue of the provisions of Article II, Sub-section 3(i) of the Original Restrictions, the Developer specified that all reserves shown on the recorded Plat(s) of the Subdivision were designated unrestricted areas, same to be used for any purpose designated by the Developer; and

WHEREAS by virtue of the provisions of Article II, Sub-section 3 (j) of the Original Restrictions, the Developer further reserved the right, at any time, and from time to time thereafter, to promulgate and impose restrictions (as well as vary and amend such restrictions) as to any or all portion of the reserves of the Subdivision identified in the Plat(s) referenced therein, which reservation expressly provided that no such action by the Developer shall, in order to be fully binding, require the joinder of any other person, whether such person be an owner of property within the Subdivision or a lien holder or the beneficiary of a deed of trust on property within the Subdivision; and

WHEREAS, certain other documents have been filed of record purporting to effect a transfer of the status of "Developer" of and within the Subdivision to certain third-parties; and

WHEREAS, the CLHOA has been afforded the status of "Developer" of and within the Subdivision, as such term is defined in the Original Restrictions; and

WHEREAS, the CLHOA, acting by and through its Board of Directors, duly elected by its membership, and in its capacity as a Developer of the Subdivision, determined that it was in the best interests of the Subdivision, and the owners of real properties located within the Subdivision, for certain additional restrictions to be imposed, insofar as is legally permissible, by its electing to take action in its capacity as "Developer" of the Subdivision, upon the use and development of all parcels of land show as "reserves" on the Plat(s) of the Subdivision, which

illustrate and describe the lands comprising the real properties located within the Subdivision; and

WHEREAS a document entitled "Amendments to the Restrictions of Columbia Lakes Subdivision" was adopted and executed by the CLHOA and evidence thereof was filed of record under Clerk's File No. 2008 007443 in the Official Record maintained in the office of the County Clerk of Brazoria County, Texas; and

WHEREAS thereafter litigation ensued and it was ultimately determined that the CLHOA did not have the authority to adopt the Amendments to the Restrictions in question,

NOW THEREFORE, for and in consideration of TEN DOLLARS (\$10.00), and other good and valuable considerations, KNOW ALL MEN BY THESE PRESENTS, THAT the Amendment to the Restrictions of Columbia Lakes Subdivision filed of record under Clerk's File No. 2008 007443 in the Official Record maintained in the office of the County Clerk of Brazoria County, Texas be and they are hereby RELEASED.

EXECUTED on the 20 day of May, 2011.

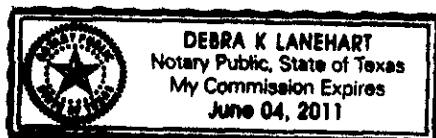
COLUMBIA LAKES HOMEOWNERS ASSOCIATION

By: Geneva West, Pres.
Geneva West, its President

ACKNOWLEDGMENT

THE STATE OF TEXAS

This instrument was acknowledged before me on the 20th day of May, 2011, by Geneva West, in her capacity as President of the COLUMBIA LAKES HOMEOWNERS ASSOCIATION, a Texas non-profit corporation, on behalf of said entity.



Debra K. Lanehart
Notary Public, State of Texas

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05/20/2011 2:30PM
Official Public Records of
BRAZORIA COUNTY
JOYCE HUBMAN
COUNTY CLERK
Fees \$24.00

Joyce Hubman

